

23STCV28732 23STCV28732

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Case Number: 23STCV28732 Hearing Date: July 1, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

1, 2026 TRIAL

DATE: October 5, 2026

CASE: Casetta Signater

v. Keppel Union School District

CASE NO.: 23STCV28732

PLAINTIFF'S

MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE (NOS. 16, 17, AND 41), AND TO COMPEL PRODUCTION OF DOCUMENTS IDENTIFIED IN DEFENDANT'S MAY 4, 2026 SUPPLEMENTAL PRIVILEGE LOG; REQUEST FOR MONETARY SANCTIONS

AGAINST

DEFENDANT AND ATTORNEY OF RECORD IN THE AMOUNT OF \$12,000.00

PLAINTIFF'S

MOTION TO COMPEL FIVE PROPERLY NOTICED DEPOSITIONS

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION TO COMPEL THE DEPOSITION OF THE PERSON MOST KNOWLEDGABLE FOR WONDERFUL COLLEGE PREP ACADEMY – H.R. AND REQUEST FOR PRODUCTION

OF DOCUMENTS

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION TO COMPEL PLAINTIFF CASETTA SIGNATER'S APPEARANCE FOR A DEPOSITION AND FOR SANCTIONS IN THE AMOUNT OF \$5,963.20 AGAINST PLAINTIFF CASETTA SIGNATER AND HER ATTORNEY, DARRYL LUCIEN, ESQ

I. INTRODUCTION

Plaintiff Casetta Signater

("Plaintiff") brings this FEHA employment action against defendant Keppel Union District School ("Defendant").

Before the court are four motions: (1) Plaintiff's Motion to Compel Further; (2) Plaintiff's Motion to Compel Five Depositions; (3) Defendant's Motion to Compel Person Most Knowledgeable (PMK) Deposition; and (4) Defendant's Motion to Compel Plaintiff's Deposition. The court addresses these motions in turn.

II. DISCUSSION RE MOTION TO COMPEL FURTHER

A. Background

On May 28, 2026, Plaintiff filed a motion to compel Defendant's further responses to Requests for Production of Documents, Set One, Nos. 16, 17, and 41. Plaintiff requests sanctions against Defendant and its counsel of record.

On June 17, 2026, Defendant filed an opposition. Defendant requests sanctions against Plaintiff and her counsel of record.

On June 24, 2026, Plaintiff filed a reply.

B. Legal Standard

Under Code of Civil Procedure section 2031.310, a party may move for a further response to production demands where an answer to the discovery requests is evasive or incomplete or where an objection is without

merit or too general. 2222

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Notice of the motions must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., § 2031.310(c).) 2222

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California Rules of Court, rule 3.1345(a)(3) requires that all motions for responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. 22

Monetary Sanctions 2222

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Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.) 2222

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If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction. 22222222

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Sanctions shall be awarded against any party, person or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds that the one subject to the sanction acted

with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2031.310(h).)

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Sanctions may also be imposed against counsel if a party seeking sanctions against an attorney offers sufficient evidence of a misuse of the discovery process, and the attorney fails to demonstrate that he or she did not recommend that conduct. (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 81 (Kwan Software).)

C. Application

Plaintiff moves for a further response from Defendant to Request for Production of Documents (RFP) Nos. 16, 17, and 41. These RFPs concern the investigation file of Chris Reynolds ("Reynolds Investigation File"). Mr. Reynolds conducted an investigation into Plaintiff's complaint of discrimination and retaliation pursuant to Defendant's request.

The motion is denied. Driving this conclusion is the court's view that Defendant has not waived the attorney-client privilege nor work product protections. Plaintiff argues Defendant has waived these privileges by relying on the Reynolds Investigation File in its motion for summary judgment. Not so. Consistent with the Judge Bensinger's April 3, 2025 order denying Plaintiff's motion to compel further, Defendant has not placed the adequacy of its investigation at issue. Defendant's motion for summary judgment merely noted that the investigation took place and Mr. Reynolds's findings.[1]

Monetary Sanctions

Notwithstanding the ruling, the court declines to award sanctions against Plaintiff.

D. Conclusion

The motion is DENIED.

Defendant's request for

sanctions is DENIED.

III. DISCUSSION RE MOTION TO COMPEL FIVE DEPOSITIONS

A. Background

On June 8, 2026, Plaintiff filed a motion to compel Defendant to produce the following individuals for deposition: (1) Superintendent Priyadarshini Darbari ("Darbari") for the continuation and completion of her PMK deposition; (2) Ms. Darbari in her individual capacity; (3) Defendant's PMK on Board of Education communications, deliberations, and decisions relating to the non-reemployment and termination of Plaintiff; (4) Dr. Jacqueline Cardenas; and (5) Dr. Terry Walker. Plaintiff also requests that the court extend the discovery cut-off for the exclusive purpose of taking the foregoing depositions and an award of sanctions.

On June 17, 2026, Defendant filed an opposition. Defendant requests sanctions against Plaintiff and her counsel.

On June 24, 2026, Plaintiff filed a reply.

B. Legal Standard

Any party may obtain discovery by taking in California the oral deposition of any person.¿ (Code Civ. Proc., § 2025.010.)¿ "If, after service of a deposition notice, a party to the action...without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice."¿ (Code Civ. Proc., § 2025.450(a).)¿¿¿¿¿¿¿¿

C. Application

The court will grant the

motion. The court finds Plaintiff sufficiently met and conferred prior to filing this motion, and importantly, established good cause to reopen discovery for the purpose of taking the requested depositions. (See Mot., pp. 10-11.) Moreover, Defendant does not oppose the continuance/taking of Ms. Dabari's deposition in her individual capacity and as Defendant's PMK.[2]

Monetary Sanctions

Given

the ruling, the court considers only Plaintiff's request for sanctions. If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction. Here, Plaintiff does not identify against whom sanctions are sought in her notice of motion.

D. Conclusion

The motion is GRANTED. Defendant is ordered to produce Ms. Darbari, Dr. Walker, and Ms. Cardenas for deposition within 30 days of this order.

The requests for sanctions are DENIED.

IV. DISCUSSION RE MOTION TO COMPEL PMK DEPOSITION

A. Background

On June 11, 2026, Defendant filed a motion to compel Plaintiff's former employer, Wonderful College Prep Academy – H.R., to produce a PMK for deposition. Defendant does not request sanctions.

On June 17, 2026, Plaintiff filed an opposition. Plaintiff does not request sanctions.

On June 24, 2026, Defendant filed a reply.

B. Legal Standard

A party is entitled to obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the action. (Code of Civil Procedure § 2017.010.) A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (Code Civ. Proc., § 2020.010.)

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If the nonparty deponent is an organization, to any officer, director, custodian of records, or to any agent or employee authorized by the organization to accept service of a subpoena. (Code Civ. Proc., § 2020.220(b)(1).) Personal service of any deposition subpoena is effective to require the personal attendance and testimony of the nonparty deponent, if the subpoena so specifies. (Code Civ. Proc., § 2020.220(c)(1).) ~~~~~

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"A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." (Cal. Rules of Court, rule 3.1346.) ~

C. Application

The court will deny the motion. Defendant does not provide proof of service of this motion on the nonparty deponent. Ruling on this motion without proof of service would deny nonparty deponent of notice and an opportunity to be heard.

D. Conclusion

The motion is DENIED
WITHOUT PREJUDICE.

V. DISCUSSION RE MOTION TO COMPEL PLAINTIFF'S DEPOSITION

A. Background

On June 11, 2026, Defendant filed this motion to compel Plaintiff to complete her deposition.

Defendant requests sanctions against Plaintiff and her counsel of record.

On June 17, 2026, Plaintiff filed an opposition.

On June 24, 2026, Defendant filed a reply.

B. Legal Standard

See above.

C. Application

The motion is granted. It is undisputed Plaintiff did not complete her deposition. Further, Plaintiff does not oppose the completion of her deposition.

Rather, if the court is inclined to grant the motion, Plaintiff requests that her continued deposition be ordered to take place in a single or consecutive days as necessary. The request is reasonable. The court will order the deposition subject to these conditions. Discovery is likewise reopened and extended for this purpose.

Monetary Sanctions

Defendant's request for sanctions is denied. Although Plaintiff untimely objected to the notice of deposition for her continued deposition, Defendant was required to obtain leave of court to depose Plaintiff more than once. The court finds Plaintiff had substantial justification in opposing this motion to ensure any continued deposition is completed in a single day, or alternatively, over consecutive days.

D. Conclusion

The motion is GRANTED. Plaintiff is ordered to appear for her continued deposition within 30 days of this order. The deposition is to be completed in a single day, or alternatively, over consecutive days.

Defendant's request for sanctions is DENIED.

VI. DISPOSITIONS

1. Plaintiff's motion to compel further is Denied. The requests for sanctions are Denied.

2. Plaintiff's motion to compel five depositions is Granted. Defendant is ordered to produce Ms. Darbari, Dr. Walker, and Ms. Cardenas for deposition within 30 days of this order. Discovery is reopened and extended for this purpose. The request for sanctions is Denied.

3. Defendant's motion to compel PMK deposition is Denied Without Prejudice.

4. Defendant's motion to compel Plaintiff's deposition is Granted. Plaintiff is ordered to appear for her continued deposition within 30 days of this order. The deposition is to be completed in a single day, or alternatively, over consecutive days. Discovery is likewise reopened and extended for this purpose. The request for sanctions is Denied.

Moving parties to give notice, unless waived.

Dated: July 1, 2025⁶

Brock T. Hammond

Judge of the Superior Court

[1] The court rejects Defendant's argument that the motion is untimely as to RFP Nos. 16 and 17. Defendant served a supplemental privilege log

on May 4, 2026 (and another on May 11, 2026).

Indeed, these privilege logs are the subject of Plaintiff's motion. The court denies the motion on other grounds as discussed herein.

[2] The parties engage in a lengthy

"blame game" accusing the other for dilatory conduct, causing delays, or outright stonewalling in completing discovery.

The court wades into the waters only to observe that neither party may claim to be blameless.